

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TROY STEINBERGIN,

Plaintiff,

-against-

CITY OF NEW YORK, JAMAL HAIRSTON,
UNDERCOVER OFFICER No. 0076, UNDERCOVER
OFFICER No. 0039, ANTHONY RONDA, MATTHEW
FORTE, SCOTT COTE, KEITH CARPENTER, ERICK
ORTIZ, OSCAR FERNANDEZ, ANGEL NARVAEZ
and ROBERT FRANK,

Defendants.
-----X

SUMMONS

Index No.

Purchased October 12, 2021

Venue is Based Upon Locus of
Injury

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
October 12, 2021

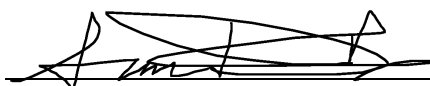
SIM & DEPAOLA, LLP

Attorneys-at-Law

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Bayside, New York 11361

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By: 
Samuel C. DePaola, Esq.
Attorneys for Plaintiff

TO: **CITY OF NEW YORK**

Via Corporation Counsel Of The City of New York
100 Church Street
New York, New York 10007
serviceecf@law.nyc.gov

Det. JAMAL HAIRSTON (Tax Reg. No. 941875)

UNDERCOVER OFFICER No. 0076

UNDERCOVER OFFICER No. 0039

Lt. ANTHONY RONDA (Tax Reg. No. 894324)

Det. KEITH CARPENTER (Shield No. 5123)

Det. ERICK ORTIZ (Shield No. 3383)

Det. ANGEL NARVAEZ (Shield No. 3286)

Det. ROBERT FRANK (Shield No. 862)

Via Narcotics Borough Manhattan North
One Police Plaza
New York, New York 10038

Sgt. MATTHEW FORTE (Tax Reg. No. 944569 & Shield No. 2891)

Via 115th Detective Squad
92-15 Northern Boulevard
Jackson Heights, New York 11372

Det. SCOTT COTE (Shield No. 475)

Det. OSCAR FERNANDEZ (Shield No. 7103)

Via CEIS Major Investigation Squad
One Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TROY STEINBERGIN,

Plaintiff,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, JAMAL HAIRSTON,
UNDERCOVER OFFICER No. 0076, UNDERCOVER
OFFICER No. 0039, ANTHONY RONDA, MATTHEW
FORTE, SCOTT COTE, KEITH CARPENTER, ERICK
ORTIZ, OSCAR FERNANDEZ, ANGEL NARVAEZ
and ROBERT FRANK,

Defendants.
-----X

Plaintiff, **Mr. TROY STEINBERGIN**, by and through the undersigned attorneys,
Sim & DePaola, LLP, for his complaint against Defendants, **CITY OF NEW YORK,
JAMAL HAIRSTON, UNDERCOVER OFFICER No. 0076, UNDERCOVER OFFICER
No. 0039, ANTHONY RONDA, MATTHEW FORTE, SCOTT COTE, KEITH
CARPENTER, ERICK ORTIZ, OSCAR FERNANDEZ, ANGEL NARVAEZ and
ROBERT FRANK**, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress against defendants for violating his civil rights and depriving him of his of liberty.
2. The following claims arise from a June 21, 2014, incident, in which defendants, acting under color of state law, unlawfully stopped, searched, seized, detained, arrested and prosecuted Plaintiff without a judicially authorized arrest or search warrant, reasonable suspicion, probable cause or any other legal justification to do so.

3. Plaintiff, Mr. Troy Steinbergin, was caused to be unlawfully detained for several days and nights, until their eventual release physical custody.

4. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

5. Within ninety (90) days of the accrual dates of the state law claims herein, Plaintiff served the New York City Comptroller's Office with written notice of said claims.

6. More than thirty (30) days have elapsed since the service of said notice, and this matter has not been settled or otherwise disposed of.

7. Plaintiff has complied with the municipal Defendant's demand for an oral examination, pursuant to section 50-h of the General Municipal Law or no such demand has been noticed within the time permitted by law.

8. The state law claims herein have been commenced within one-year-and-ninety-days of the dates from which they arose.

9. The above-referenced acts caused Plaintiff to be deprived of his liberty, his right to be from unreasonable searches and seizures, in addition to his rights to be afforded a Fair Trial, Due Process and the Equal Protection of the Law.

10. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, with all interest then accrued, in addition to such other or further relief, as this Court may deem just and proper.

PARTIES

11. Plaintiff, Mr. Troy Steinbergin ("Mr. Steinbergin"), is a Black or African American, male, who resides in the County, City and State of New York.

12. The Defendant, CITY OF NEW YORK ("CITY"), is a municipal corporation organized under the laws of the State of New York.

13. At all times relevant hereto, Defendant CITY, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives, and supervisory officers, including the individually named Defendants herein.

14. In addition, at all times here relevant, Defendant CITY was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel, including the individually named defendants herein, obey the laws of the United States, as well as the City and State of New York.

15. Defendants, JAMAL HAIRSTON ("HAIRSTON"), UNDERCOVER OFFICER No. 0076 ("UC 76"), UNDERCOVER OFFICER No. 0039 ("UC 39"), ANTHONY RONDA ("RONDA"), MATTHEW FORTE ("FORTE"), SCOTT COTE ("COTE"), KEITH CARPENTER ("CARPENTER"), ERICK ORTIZ ("ORTIZ"), OSCAR FERNANDEZ ("FERNANDEZ"), ANGEL NARVAEZ ("NARVAEZ") and ROBERT FRANK ("FRANK"), were, at all relevant times herein, police officers, detectives, sergeants, lieutenants, or other supervisory officers, employed by the NYPD, and, as such, were

acting in the capacities of agents, servants and employees of the City of New York. Defendants were, at all relevant times herein, assigned to Narcotics Borough Manhattan North. Defendants, HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, are being sued in their individual and official capacities.

16. At all relevant times herein, Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

17. On June 21, 2014, at approximately 7:15 p.m., in the vicinity of 1760 Lexington Avenue, New York, New York, Plaintiff was illegally stopped, searched, seized, arrested and detained by defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, who did not possess a valid search or arrest warrant authorizing the search or seizure of Plaintiff or his property.

18. Plaintiff had not committed any crimes or violations of the law and had not been accused of such by any identified witnesses.

19. At said date, time and location, Plaintiff was aggressively approached by numerous NYPD officers by, or at the direction of, defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ,

NARVAEZ and FRANK, who extended their outstretched arms toward Plaintiff in a threatening and intimidating manner.

20. Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, then unlawfully stopped by Plaintiff by grabbing his body and limbs, despite possessing no legal basis to do, as defendants did not possess any credible evidence against Plaintiff regarding the commission of any crime or offense, including Criminal Sale of a Controlled Substance.

21. Defendants, HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, proceeded to physically restrain Plaintiff while violently contorting their arms behind their backs before finally affixing metal handcuffs to Plaintiff's wrists in an excessively fashion, which caused Plaintiff to sustain substantial physical pain and injuries to his back, neck, arms, hands and wrists.

22. Plaintiff complained to defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, that the handcuffs were too tight and causing to Plaintiff suffer substantial pain but said defendants either ignored or outright refused Plaintiff's requests to loosen their handcuffs.

23. Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, lacked any probable cause or reasonable suspicion to stop, seize or arrest Plaintiff, because defendants never observed Plaintiff commit any crime or violation of the law and were never informed that Plaintiff committed any crime or violation of the law, including the Criminal Sale of a Controlled Substance, *e.g.*, cocaine.

24. Defendants, including, HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, then proceeded to illegally search Plaintiff's person by subjecting Plaintiff to illegal strip-searches with attendant cavity inspections of his person, despite the clear lack of any indicia of secreted contraband or unlawful activity to justify such invasive procedures.

25. Due to the lack of probable cause for the searches or seizures of Plaintiff's person, the aforementioned conduct constituted the completed torts of assault and battery by defendants.

26. Prior to Plaintiff being arraigned in criminal court, defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, caused the subject criminal court complaint to be filed against Plaintiff in New York County Criminal Court, which falsely accused Plaintiff of committing the crime of Criminal Sale of a Controlled Substance in the Third-Degree.

27. Defendants, including, HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, knowingly, maliciously and intentionally engaged in the fabrication of false and fictitious evidence, observations, events and occurrences, which defendants falsely attributed to Plaintiff before forwarding to prosecutors of the Office of the District Attorney of New York County, namely that Plaintiff was observed selling cocaine to Defendant UC 76, when defendants knew such observations to be untrue and complete fabrications.

28. Defendants, including, HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, engaged in fraud, the suppression of evidence, perjury, the gross deviation from acceptable police conduct and other conduct undertaken in bad faith, including the withholding of video surveillance and witness statements that directly contradict the false allegations against Plaintiff by defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK.

29. Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, falsely arrested, wrongfully detained and maliciously prosecuted Plaintiff with the full knowledge that he had committed no crimes or violations of the law.

30. Plaintiff was therefore denied his rights to fair trial and Due Process and was maliciously prosecuted by defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, until the criminal proceedings were terminated in his favor on October 9, 2018, when the sole charge against him, Criminal Sale of a Controlled Substance in the Third-Degree, as unconditionally dismissed and sealed, pursuant to sections 160.50 and 160.60 of the Criminal Procedure Law, after the Appellate Division of the Supreme Court of the State of New York for the First Judicial Department unanimously reversed Plaintiff's conviction and granted his motion to suppress upon finding that Plaintiff was arrested in the absence of probable cause. *See People v. Steinbergin*, 73 N.Y.S.3d 547 (1st Dep't 2018).

31. As a result, Plaintiff, Mr. Steinbergin, was caused to be unlawfully, involuntarily and continuously detained by defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, over the course of approximately Forty-One (41) consecutive months, from the date of his arrest, until his eventual release from New York State Prison on, or about, November 16, 2017.

32. At all times relevant hereto, the defendants, including, HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, were involved in the decision to stop, seize, arrest and prosecute Plaintiff without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

33. At all times relevant hereto, the defendants, including, HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, subjected Plaintiff to excessive force, or failed to intervene when they observed others subjecting Plaintiff to excessive force.

34. Defendant City and the individually named police officers herein, have engaged in a policy, custom, or pattern and practice of illegally stopping, searching, arresting and criminally prosecuting African American or Black males, who observed in outside in alleged "high-crime areas" without more, due solely to their impermissible and uncorroborated belief that such presence is tantamount to the commission of such suspected criminality.

35. Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, illegally approached, stopped, searched, and then falsely arrested Plaintiff, due solely to their racially discriminatory prejudices against African American or Black males, their intent to use the subject arrest and prosecution as leverage to compel Plaintiff to provide defendants with information regarding defendants' true and only suspects, or other unrelated crimes or criminal suspects, their desires to fulfill an unconstitutional arrest quota and to benefit from increased overtime compensation.

36. Plaintiff further asserts that Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, acted in such an unlawfully reprehensible manner, due to their unsubstantiated and unreasonable presumptions that Plaintiff would be able provide said defendants with information pertaining to unrelated criminal activity or suspects, solely because of his status as an African American or Black male.

37. Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, arrested and maliciously prosecuted Plaintiff, because of their racially discriminatory beliefs, which compelled defendants to equate to Plaintiff's race, ethnicity or national origin to criminal guilt or criminal knowledge.

38. Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations and biases, namely

the unwarranted and unlawful stop, search, assault, battery, seizure, arrest, and criminal prosecution of Plaintiff, despite possessing no evidence, credible or otherwise, to justify such conduct.

39. Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, unlawfully stopped, questioned, searched, seized, arrested, and maliciously prosecuted Plaintiff, due solely to defendants' perception or consideration of Plaintiff's race, ethnicity, national origin, sex, gender or age.

40. Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, unlawfully stopped, questioned, searched, seized, arrested, and maliciously prosecuted Plaintiff, because of their improper and pernicious desires to prevent Plaintiff from exerting his First Amendment right to engage in protected speech and activities, such as Plaintiff's refusal to yield to defendants' unreasonably coercive demands to utter false confessions or assist defendants in the fabrication of evidence against defendants' true suspects or other persons of interest.

41. Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, possessed no valid reason to approach, stop, question, search or arrest Plaintiff, which gives rise to the strong inference that such conduct resulted from defendants' unjust motivations or proclivities, including defendants' invidious and biased based discriminatory predilections against African American or Black males, such as Plaintiff, defendants' desire to retaliate, punish

or otherwise penalize Plaintiff for his refusal to submit to the will of defendants by answering questions to the satisfaction of defendants.

42. Defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiff by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence, the suppression of exculpatory evidence, as well the manner and means by which said fabrications would be forwarded to prosecutors.

43. The aforementioned acts of defendants, including HAIRSTON, UC 76, UC 39, RONDA, FORTE, COTE, CARPENTER, ORTIZ, FERNANDEZ, NARVAEZ and FRANK, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as enumerated and set forth by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.

44. As direct or proximate results of said acts, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, the loss of earnings and potential earnings, substantial and permanent physical and psychological injuries, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTIONProtected Speech or Activity Retaliation Claim Under
New York State Law

45. The above paragraphs are hereby incorporated by reference as though fully set forth.

46. Plaintiff engaged in speech and activities that were protected by article I, section 8, of the constitution of the State of New York.

47. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

48. Defendants' retaliatory actions against Plaintiff resulted in deprivations to his liberty and the initiation of criminal charges against him in the absence of probable cause.

49. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling his desire to further participate or engage in such protected speech or activities.

50. Accordingly, Plaintiff's right to engage in protected speech and activities, as guaranteed and protected by article I, section 8, of the constitution of the State of New York, was violated by defendants.

51. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

52. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 *Against* Individual Defendants

53. The above paragraphs are hereby incorporated by reference as though fully set forth.

54. Plaintiff engaged in speech and activities that were protected by the First Amendment to the Constitution of the United States.

55. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's Constitutionally protected speech or activities, under the First Amendment.

56. Defendants' retaliatory actions against Plaintiff resulted in deprivations to his liberty and the initiation of criminal charges against him in the absence of probable cause.

57. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desires to further participate or engage in such protected speech or activities.

58. Accordingly, Plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the Constitution of the United States, was violated by defendants.

59. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search & Seizure Under
New York State Law

60. The above paragraphs are hereby incorporated by reference as though fully set forth.

61. Defendants subjected Plaintiff's person and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

62. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his persons and property.

63. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

64. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

65. Accordingly, defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the constitution of the State of New York and Article II, Section 8, of the New York Civil Rights Law.

66. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION**Unlawful Search & Seizure Under
42 U.S.C. § 1983 *Against* Individual Defendants**

68. The above paragraphs are hereby incorporated by reference as though fully set forth.

69. Defendants subjected Plaintiff's person and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

70. Plaintiff were conscious and fully aware of the unreasonable searches and seizures to his person and property.

71. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

72. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

73. Accordingly, defendants violated Plaintiff's rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

74. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION**False Arrest & False Imprisonment Under
New York State Law**

75. The above paragraphs are hereby incorporated by reference as though fully set forth.

76. Defendants subjected Plaintiff to false arrest, false imprisonment, and the deprivation of liberty without probable cause.
77. Plaintiff was conscious of his confinement.
78. Plaintiff did not consent to his confinement.
79. The arrest and imprisonment of Plaintiff were not otherwise privileged.
80. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
81. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

False Arrest & False Imprisonment Under
42 U.S.C. § 1983 *Against* Individual Defendants

82. The above paragraphs are hereby incorporated by reference as though fully set forth.
83. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
84. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff were carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
85. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

86. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under
New York State Law

87. The above paragraphs are hereby incorporated by reference as though fully set forth.

88. Defendants caused Plaintiff fear for their physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

89. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent or other legal justification therefor.

90. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

91. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 *Against* Individual Defendants

92. The above paragraphs are hereby incorporated by reference as though fully set forth.

93. The Defendants violated Plaintiff's rights, under the Fourth and Fourteenth Amendments to the Constitution of the United States, because they used unreasonable force without the consent of Plaintiff.

94. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without consent.

95. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

96. The above paragraphs are hereby incorporated by reference as though fully set forth.

97. Defendants initiated the criminal prosecution against Plaintiff.

98. Defendants lacked probable cause to believe Plaintiff was guilty or that the criminal prosecution would succeed.

99. Defendants acted with malice, which may be inferred in the absence of probable cause.

100. The prosecution was terminated in favor of Plaintiff, when all adverse charges were unconditionally and outright dismissed on the merits, due to the lack of probable cause to believe that Plaintiff had committed a crime or that the prosecution would succeed.

101. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under

42 U.S.C. § 1983 *Against* Individual Defendants

103. The above paragraphs are hereby incorporated by reference as though fully set forth.

104. Defendants initiated the criminal prosecution against Plaintiff.

105. Defendants lacked probable cause to believe Plaintiff was guilty or that the criminal prosecution would succeed.

106. Defendants acted with malice, which may be inferred in the absence of probable cause.

107. The prosecution was terminated in favor of Plaintiff, when all adverse charges were unconditionally dismissed on the merits, due to the lack of probable cause to believe that Plaintiff had committed any crime or that the prosecution would succeed.

108. Accordingly, Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

109. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under

New York State Law

110. The above paragraphs are hereby incorporated by reference as though fully set forth.

111. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

112. Defendants had no excuse or justification to forcibly detain or initiate a criminal prosecution against Plaintiff, especially in the absence of any cognizable probable cause.

113. Defendants intended to inflict substantial harm upon Plaintiff.

114. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecution initiated and thereafter maintained against Plaintiff.

115. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

117. The above paragraphs are hereby incorporated by reference as though fully set forth.

118. Defendants arrested, detained and a caused criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

119. Defendants had no excuse or justification to forcibly detain or initiate criminal prosecution against Plaintiff, especially in the absence of any cognizable probable cause.

120. Defendants intended to inflict substantial harm upon Plaintiff.

121. Defendants acted to achieve a collateral purpose, beyond or in addition to the criminal prosecution initiated and thereafter maintained against Plaintiff.

122. Defendants' actions therefore resulted in deprivations to Plaintiff's rights, pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.

123. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION
Denial of Right to Due Process Under
New York State Law

124. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

125. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

126. Defendants forwarded said fabrications and false information to prosecutors.

127. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiff after legal process had attached following his arraignment in criminal court.

128. Accordingly, defendants violated Plaintiff's right to Due Process, pursuant to article I, sections 1, 2 & 6, of the constitution of the State of New York, and Article II, Section 12, of the New York Civil Rights Law.

129. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

130. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

131. The above paragraphs are hereby incorporated by reference as though fully set forth.

132. Defendants engaged in the fabrication of evidence likely to influence a jury's decision.

133. Defendants forwarded said fabrications and false information to prosecutors.

134. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiff after legal process had attached following his arraignment in criminal court.

135. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth, Sixth and Fourteenth Amendments to Constitution of the United States.

136. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under
New York City Law

137. The above paragraphs are here incorporated by reference as though fully set forth herein.

138. Defendants' acts or series of acts constituted the commission of a misdemeanor or felony against Plaintiff, as defined in state or federal law, which presented a serious risk of physical injury to Plaintiff, regardless of whether said acts actually resulted in criminal charges, prosecutions or convictions.

139. Accordingly, defendants committed crimes of violence against Plaintiff and violated Plaintiff's rights, pursuant to section 10-403 of the Administrative Code of the City of New York.

140. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

141. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Biased Based Profiling Under New York City Law

142. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

143. Defendants impermissibly relied upon the actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation of Plaintiff as the determinative factor in initiating law enforcement actions against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

144. Accordingly, defendants violated Plaintiff's rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

145. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

146. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION**Deprivation of Rights & Denial of Equal Protection of the Laws Under
New York State law**

147. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

148. Plaintiff, as a Black or African American male, belongs to a racial minority and a protected class.

149. Defendants discriminated against Plaintiff on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

150. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

151. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

152. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

153. Defendants, motivated by racial animus, applied facially neutral statutes with adverse effects against Plaintiff.

154. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

155. Accordingly, defendants violated Plaintiff's rights, pursuant to article I, section 11, of the constitution of the State of New York, article VII, section 79-N, of the New York Civil Rights Law and section 296, paragraph 13, of the New York Executive Law.

156. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

157. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
42 U.S.C. §§ 1981 & 1983 *Against* Individual Defendants

158. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

159. Plaintiff, as a Black or African American male, belongs to a racial minority and a protected class.

160. Defendants discriminated against Plaintiff on the basis of race, color, ethnicity or national origin.

161. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

162. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

163. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

164. Defendants, motivated by racial animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

165. Defendants did not possess a rational basis, excuse or justification for applying any

laws or statutes against Plaintiff.

166. Accordingly, defendants violated Plaintiff's rights, under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

167. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

168. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 *Against* Individual Defendants

169. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

170. Defendants engaged in a conspiracy against Plaintiff to deprive him of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, and to not be deprived of their liberty or property without Due Process of Law, in addition to Plaintiff's Constitutionally guaranteed privileges and immunities under the Fifth and Fourteenth Amendments to the Constitution of the United States.

171. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

172. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty, rights or privileges as a citizen of the United States.

173. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial or otherwise class-based, invidious or discriminatory animus.

174. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in the process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

175. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

176. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

177. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under New York State Law

178. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

179. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

180. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

181. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

182. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

183. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

184. Accordingly, the Defendants who failed to intervene violated the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

185. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) Awarding Plaintiff compensatory and punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

- w) Awarding Plaintiff reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, and all applicable sections of the Administrative Code of the City of New York;
- x) Together with the costs and disbursement of this action, plus all interest then accrued.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
October 12, 2021

SIM & DEPAOLA, LLP

Attorneys-at-Law
42-40 Bell Boulevard - Suite 405
Bayside, New York 11361
(718) 281-0400

By: 

Samuel C. DePaola, Esq.
Attorneys for Plaintiff

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of SIM & DEPAOLA, LLP, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and, as to those matters, I believe it to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
October 12, 2021



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

TROY STEINBERGIN,

Plaintiff,

-against-

CITY OF NEW YORK, JAMAL HAIRSTON, UNDERCOVER OFFICER No. 0076,
UNDERCOVER OFFICER No. 0039, RONDA ANTHONY, MATTHEW FORTE, SCOTT
COTE, KEITH CARPENTER, ERICK ORTIZ, OSCAR FERNANDEZ, ANGEL
NARVAEZ and ROBERT FRANK,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff

42-40 Bell Boulevard

Suite 405

Bayside, New York 11361

Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorney(s) for Defendant(s)

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for